

Court No. - 21

Case :- WRIT - C No. - 11226 of 2023

Petitioner :- M/S Uflex Limited

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Nisheeth Yadav, Sr. Advocate

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Ajay Singh, Kartikeya Saran

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Heard Sri C.B. Yadav, learned senior counsel assisted by Sri Nisheeth Yadav for the petitioner, learned Standing Counsel for the State respondents, Sri Ankit Prakash for respondent no.3, Sri Sandeep Kumar Rai holding brief of Sri Abhishek Srivastava for respondents no.2 & 4 and Sri Ajay Singh for respondent no.6.

The petitioner had prayed for a writ of mandamus directing Consumer Grievance Redressal Forum (respondent no.5) to decide its application filed under Section 42 (5) of the Electricity Act, 2003 and a similar direction to Ombudsman in respect of the application said to have been filed by the petitioner under Section 42 (6) of the Act before him. The petitioner has also prayed for a writ of certiorari quashing the invoice dated 2.12.2015 and the letter dated 6.12.2018 issued by respondent no.3 to the extent it seeks to impose fixed charges on the petitioner in respect of the electricity connection for the period 27.5.2015 to 31.10.2015.

Sri C.B. Yadav, learned senior counsel appearing for the petitioner states that the Consumer Grievance Redressal Forum is not in a position to decide the complaint filed by the petitioner, as the post of the Chairman of the Forum is lying vacant. Likewise, the Ombudsman, who was earlier functioning, had retired and no one has been appointed in his place so far. In such circumstances, it is urged that the petitioner has no other remedy except to file the instant petition.

On the other hand, learned counsel for respondent nos.3 and 4 submit that since the petitioner is disputing the correctness of the bill in so far as it seeks to impose fixed charges, the dispute falls under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and in case the petitioner avails the said remedy, the competent authority will decide the complaint.

We are of the opinion that the said remedy is available to the petitioner, as rightly pointed out by learned counsel for

respondent nos.3 and 4.

Sri C.B. Yadav, learned counsel for the petitioner states that the petitioner is ready to deposit Rs.2 crores under protest and without prejudice to the rights and contentions of the petitioner and raise a dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005 and prays that a direction be issued to the competent authority to decide the complaint within a specified time.

Learned counsel for respondent nos.3 and 4 have no objection to the same.

Accordingly, the petition is disposed of as follows:-

(a) The petitioner will deposit a sum of Rs.2 crores with respondent no.4 within two weeks from today. The said deposit will be without prejudice to the rights and contentions on merits and in case ultimately the claim of the petitioner is upheld, the amount that is deposited by the petitioner would be adjusted in future bills.

(b) The petitioner will file complaint before respondent no.4 alongwith evidence of having deposited Rs.2 crores within two weeks from today and in which event, the same shall be decided by respondent no.4 within next four weeks.

(c) For a period of six weeks, subject to the petitioner depositing Rs.2 crores, as provided above, further recovery shall remain in abeyance until the complaint is decided and will thereafter abide by the decision that would be taken by respondent no.4 on the complaint of the petitioner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.4.2023

SL